

24SMCV00538 24SMCV00538

County: los-angeles

Division: Civil Law and Motion

Department: 207

Hearing date: 2026-07-09

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Case Number: 24SMCV00538 Hearing Date: July 9, 2026 Dept: 207

TENTATIVE RULING

DEPARTMENT

207

HEARING DATE

July 9, 2026

CASE NUMBER

24SMCV00538

MOTIONS

Motion to Continue Trial

MOVING PARTY

Defendant Reconstruction Experts Inc.

OPPOSING PARTIES

none

MOTION

This case arises from a dispute between homeowner and homeowner's association.

On February 5, 2024, Plaintiff Sebastian Giefer as Co-Trustee of the Giefer Family Trust ("Plaintiff") brought suit against Defendants Carolwood Homeowners Association Inc. ("Carolwood"); Coro Community Management and Consulting, LLC ("Coro"); and Reconstruction Experts Inc. ("Reconstruction") (together, "Defendants"). Plaintiff's operative Second Amended Complaint ("SAC") alleges three causes of action for (1) breach of contract; (2) negligence; and (3) breach of fiduciary duty, arising from allegations that Defendants neglected to properly repair and manage a leaking roof that caused damage to Plaintiff's unit.

A jury trial is currently scheduled in this matter for August 31, 2026.

Reconstruction now moves to continue the trial and all related discovery and motion cut-off dates. The motion is unopposed.

LEGAL STANDARD

California Rules of Court, rule 3.1332(c), provides:

Although continuances of trials are disfavored, each request for a continuance must be considered on its own merits. The court may grant a continuance only on an affirmative showing of good cause requiring the continuance. Circumstances that may indicate good cause include:

(1) The unavailability of an essential lay or expert witness because of death, illness, or other excusable circumstances;

(2) The unavailability of a party because of death, illness, or other excusable circumstances;

(3) The unavailability of trial counsel because of death, illness, or other excusable circumstances;

(4) The substitution of trial counsel, but only where there is an affirmative showing that the substitution is required in the interests of justice;

(5) The addition of a new party if:

(A) The new party has not had a reasonable opportunity to conduct discovery and prepare for trial; or

(B) The other parties have not had a reasonable opportunity to conduct discovery and prepare for trial in regard to the new party's involvement in the case;

(6) A party's excused inability to obtain essential testimony, documents, or other material evidence despite diligent efforts; or

(7) A significant, unanticipated change in the status of the case as a result of which the case is not ready for trial.

Factors the Court considers in ruling on a motion for continuance include:

(1) The proximity of the trial date;

(2) Whether there was any previous continuance, extension of time, or delay of trial due to any party;

(3) The length of the continuance requested;

(4) The availability of alternative means to address the problem that gave rise to the motion or application for a continuance;

(5) The prejudice that parties

or witnesses will suffer as a result of the continuance;

(6) If the case is entitled to a preferential trial setting, the reasons for that status and whether the need for a continuance outweighs the need to avoid delay;

(7) The court's calendar and the impact of granting a continuance on other pending trials;

(8) Whether trial counsel is engaged in another trial;

(9) Whether all parties have stipulated to a continuance;

(10) Whether the interests of justice are best served by a continuance, by the trial of the matter, or by imposing conditions on the continuance; and

(11) Any other fact or circumstance relevant to the fair determination of the motion or application.

(Cal. Rules of Court, rule 3.1332(d).)

ANALYSIS

Reconstruction requests the trial continuance on the grounds that the hearing on its motion for summary judgment is currently scheduled for August 4, 2026, less than a month before the August 31, 2026 trial date.

The parties also scheduled a mediation for May 27, 2026, which was unable to go forward due to a scheduling conflict with the mediator. (Rui Decl. ¶¶ 1.) Further, Reconstruction argues good cause exists to continue the trial date in light of the parties' ongoing settlement efforts, though Reconstruction does not provide any evidentiary support for this contention.

Ultimately, the Court does not find Reconstruction has presented good cause why the trial

should be continued. The Court can simply hear the pending motion for summary judgment on August 4 as scheduled, notwithstanding that it is slightly past the statutory deadline for such motions.

With regard to mediation, Reconstruction has not presented any evidence that the parties are attempting to re-schedule the missed mediation, or what is the new mediation date.

Further, there is no evidence demonstrating that a continuance of the discovery cut-off dates is necessary or warranted.

CONCLUSION AND ORDER

Finding no good cause, the Court denies Reconstructions' motion to continue the trial date. To the extent the first available hearing date for the currently-scheduled motion for summary judgment is slightly within the 30-day window before trial, the Court grants Reconstruction an exception and agrees to hear the motion as currently scheduled.

Reconstruction shall provide notice of the Court's Orders and file the notice with a proof of service forthwith.

DATED: July 9, 2026 _____/s/ _____

Michael
E. Whitaker

Judge
of the Superior Court